

the situation of identity theft might exist. (See FAC ¶¶ 8, 9, 16, 18, 19, 22, 24, 29).

Second Cause of Action (Violation of Rosenthal Fair Debt Collection Practices Act)

The second cause of action alleges Defendant continuously and with such frequency contacted Plaintiff as to constitute harassment and without the proper licensure or display of the license number. (FAC ¶¶ 26, 41, 42, 43.)

The Rosenthal Fair Debt Collection Practices Act (Civ. Code § 1788, et seq.) regulates the collection of consumer debts. (See Civ. Code, §§ 1788.10-1788.185 [setting forth debt collector responsibilities].) Consumer debts are those incurred by “natural persons by reason of a consumer credit transaction” and includes a mortgage debt. (Civ. Code § 1788.2(f).) Section 1788.11 provides that “[n]o debt collector shall collect or attempt to collect a covered debt by . . . [c]ommunicating, by telephone or in person, with the debtor with such frequency as to be unreasonable, and to constitute harassment of the debtor under the circumstances.” (Civ. Code, § 1788.11(e).) The Act defines a “debt collector” as “any person who, in the ordinary course of business, regularly, on behalf of himself or herself or others, engaged in debt collection.” (Civ. Code, § 1788.2, subd. (c).) Debt collectors can include original creditors, agents of original creditors, or third-party collection agencies. (*In re Ganas* (Bankr. E.D. Cal. 2014) 513 B.R. 394, 407.)

Defendant Hertz contends it is not a debt collector as defined by the Act (Civ. Code § 1788.2(c); FAC ¶ 6) and in any case, Hertz cannot be liable for the actions of any third-party debt collection agency. (See, e.g., *Olson v. La Jolla Neurological Associates* (2022) 85 Cal.App.5th 723.)

Here, the FAC alleges sufficient facts to support a claim under the Rosenthal Act. The FAC alleges Defendant is the original creditor, attempted to collect a consumer debt from Plaintiff and in doing so, communicated with such frequency as to be unreasonable and to constitute harassment. (FAC ¶¶ 8, 22, 26, 40, 41.)

Third Cause of Action (Fraud of Theft by False Pretense)

The third cause of action alleges that Defendant received Plaintiff’s property in excess of \$950 by fraudulently charging his card and refusing or failing to correct the problem. (FAC ¶ 46.)

Penal Code Section 496(a) provides criminal liability for: “[e]very person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained.” Section 496(c) authorizes a civil action, recovery of attorney’s fees and costs, and treble damages for any person who has been injured by a violation of subdivision (a).

		The elements of a civil claim under Penal Code Section 496 are: (1) that the particular property was stolen; (2) that the accused received, concealed or withheld it from the owner thereof; and (3) that the accused knew that the property was stolen. (<i>Finton Construction, Inc. v. Bidna & Keys, APLC</i> (2015) 238 Cal.App.4th 200, 213.) Here, the FAC alleges Plaintiff's property in excess of \$950 was stolen, that Defendant Hertz received that property, and that Defendant knew the property was stolen under false pretense. (See FAC ¶¶ 46-47.) <u>Fourth Cause of Action (Violations of the UCL)</u> The fourth cause of action alleges Defendant Hertz violated the UCL by knowingly and intentionally creating fraudulent car rental agreements to place bogus charges on Plaintiff's credit card. (FAC ¶ 51.) Business & Professions Code Section 17200 prohibits "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising." Each prong of the UCL provides a separate and distinct theory of liability. (<i>South Bay Chevrolet v. Gen. Motors Acceptance Corp.</i> (1999) 72 Cal.App.4th 861.) In addition, the Plaintiff must allege injury in fact and loss of money or property suffered as a result of the unfair business practices. (Bus. & Prof. Code § 17204; <i>R & B Auto Ctr. v. Farmers Group, Inc.</i> (2006) 140 Cal.App.4th 327, 360.) Under the unlawful prong, a violation of law may be actionable as unfair competition under Cal. Business & Professions Code section 17200. (<i>Lueras v. BAC Home Loans Servicing, LP</i> (2013) 221 Cal.App.4th 49, 81.) Here, the FAC alleges theft in violation of Penal Code section 496. The FAC also alleges Plaintiff suffered injury in fact and loss of money as a result, including the money charged to his credit card. (FAC ¶¶ 46, 47, 51, 52.) No later than 10 days after service of the notice of ruling, Defendant shall file and serve an answer to the Complaint. (Cal. Rules Ct., Rule 3.1320(g).) Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to June 26, 2025, at 9:00 a.m. in this Department. Plaintiff to give notice.
8	Momenirad v. Hyundai Motor America	<u>Motion for Attorney Fees</u> Plaintiff Ali Momenirad moves for an award of attorney fees and costs against Defendant Hyundai Motor America. For the following reasons, the motion is GRANTED IN A REDUCED AMOUNT. Defendant shall